

JDF 477	Motion to Seal Non-Conviction Records (simplified Process for Non-Convictions)	
1. Court ☐ District ☐ County Colorado County: _____ Court Address: _____		<i>This box is for court use only.</i>
2. Parties to the Case Plaintiff: People of the State of Colorado v. Defendant: _____		
		3. Case Details Number: _____ Division: _____ Courtroom: _____

4. Background

I file this motion under Colorado Revised Statutes (C.R.S.) sections (§§) 24-72-705 or, for convictions vacated through C.R.S. § 18-1-410.7(5)(b), C.R.S. § 24-72-707.

5. My Information *(the Defendant)*

Full Name: _____ Birth Date: _____
Current Mailing Address: *(with city/state/zip)* _____
Phone: _____ Email: _____

6. Grounds for Sealing Records

- ☐ I was acquitted of all charges on _____
- ☐ The case was completely dismissed on _____, and the dismissal was not part of a plea agreement in a separate case.
- ☐ The Court vacated my conviction in this case because it found I was the victim of human trafficking when the offense occurred. C.R.S. § 18-1-410.7(5)(b).
- ☐ I completed a diversion agreement on _____
- ☐ I completed a deferred judgment and sentence on _____, and the deferred judgment and sentence does not pertain to any of the following offenses:

a) A felony offense concerning the holder of a commercial driver's license or the operator of a commercial motor vehicle under C.R.S. § 42-2-402.

a) A felony offense for which the factual basis involved unlawful sexual behavior under C.R.S. § 16-22-102(9).

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1. Court ☐ District ☐ County Colorado County: <u>Denver</u> Court Address: _____		<i>This box is for court use only.</i>
2. Parties to the Case Plaintiff: People of the State of Colorado v. Defendant: _____		
		3. Case Details Number: <u>2023CR004182</u> Division: _____ Courtroom: _____

4. Background

I file this motion under Colorado Revised Statutes (C.R.S.) sections (§§) 24-72-705 or, for convictions vacated through C.R.S. § 18-1-410.7(5)(b), C.R.S. § 24-72-707.

5. My Information *(the Defendant)*

Full Name: _____ Birth Date: 1988-04-17
Current Mailing Address: *(with city/state/zip)* 418 Sycamore Ridge Road
Phone: 555-0142 Email: marion.ellsworth@example.com

6. Grounds for Sealing Records

- ☐ I was acquitted of all charges on _____
- ☐ The case was completely dismissed on _____, and the dismissal was not part of a plea agreement in a separate case.
- ☐ The Court vacated my conviction in this case because it found I was the victim of human trafficking when the offense occurred. C.R.S. § 18-1-410.7(5)(b).
- ☐ I completed a diversion agreement on _____
- ☐ I completed a deferred judgment and sentence on _____, and the deferred judgment and sentence does not pertain to any of the following offenses:

a) A felony offense concerning the holder of a commercial driver's license or the operator of a commercial motor vehicle under C.R.S. § 42-2-402.

a) A felony offense for which the factual basis involved unlawful sexual behavior under C.R.S. § 16-22-102(9).

7. Affirmations

I affirm that:

- a) I do not owe any restitution, or the Court has vacated such order(s).
- b) The records, in this case, do not pertain to underage ethyl alcohol, marijuana, and paraphernalia offenses that are subject to the procedure set forth in C.R.S. § 18-13-122, and this case contains at least one charge that is not a class 1 misdemeanor traffic offense, class 2 misdemeanor traffic offense, class A traffic infraction, or class B traffic infraction. Charges in this case were not dismissed pursuant to C.R.S. § 16-8.5-116.

8. Records to be Sealed

Agencies having records related to this case are: *(check all that apply)*

- ☐ Prosecuting Attorney
- ☐ Sheriff's Department
Mailing Address: _____
- ☐ Colorado Bureau of Investigation *(Required)*
ATTN Identification-Seals, 690 Kipling St. STE 3000, Lakewood, CO 80215
- ☐ Law Enforcement: (Name) _____ Case Number: _____
Mailing Address: _____
- ☐ Other: _____
Mailing Address: _____

Arrest number: *(from fingerprint card)* _____ Date: _____

I respectfully request that any criminal justice records, except identifying information, related to this case be sealed promptly.

9. Certificate of Service

On *(enter service date)* _____

I certify that I sent a copy of this document to the prosecuting attorney by: *(select one)*

- ☐ Colorado Courts E-Filing. *(only available to lawyers)*
- ☐ Regular Mail, addressed to:
Name & full address: _____
- ☐ Other: *(explain)* _____

7. Affirmations

I affirm that:

- a) I do not owe any restitution, or the Court has vacated such order(s).
- b) The records, in this case, do not pertain to underage ethyl alcohol, marijuana, and paraphernalia offenses that are subject to the procedure set forth in C.R.S. § 18-13-122, and this case contains at least one charge that is not a class 1 misdemeanor traffic offense, class 2 misdemeanor traffic offense, class A traffic infraction, or class B traffic infraction. Charges in this case were not dismissed pursuant to C.R.S. § 16-8.5-116.

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- ☐ Regular Mail, addressed to:
Name & full address: _____
- ☐ Other: *(explain)* _____

10. Verified Signature

I declare under penalty of perjury under the law of Colorado that the foregoing is true and correct.

Executed on the (date) _____ day of (month) _____ (year) _____
at City: (or other location) _____
and State: (or country) _____

Print Your Name: _____

Your Signature: _____

Counsel Signature: (if any) _____

☐ Esq. Reg No. _____

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